ILLINOIS TECH | College of Computing

ITMM 485 / 585
Dr. Gurram Gopal

Legal and Ethical Issues in Information Technology

85

ILLINOIS TECH | College of Computing

Ch9: Regulating Commerce and Speech
P4: Hate Speech and Network Neutrality

86

Learning Objectives 1

Upon completion of this lesson the students should be able to:

- Define "regulation by code"
- Describe Digital Rights Management and explain why it is controversial
- Describe spam email and discuss if some forms of spam can be defended
- Explain the difficulties involved in balancing free speech and censorship in online contexts and forums

87

Learning Objectives 2

Upon completion of this lesson the students should be able to:

- Describe and discuss issues associated with online distribution of pornography
- Discuss whether online pornography should be censored
- Discuss issues associated what some view as excessive online speech: hate speech as well as speech that can cause physical harm to others
- Define "network neutrality" and explain the implications this principle has for the future of Internet regulation

88

Module Objectives

Upon completion of this lesson the students should be able to:

- Discuss issues associated what some view as excessive online speech: hate speech as well as speech that can cause physical harm to others
- Define "network neutrality" and explain the implications this principle has for the future of Internet regulation

89

Two types of Controversial Speech in Cyberspace

- In addition to pornography, two additional kinds of speech that have been controversial in cyberspace are:

1. *hate speech*;
2. speech that can *cause physical harm* to others (i.e., both to individuals and communities).

90

Hate Speech

- The U.S. has tended to focus on controversial Internet speech issues that involve online pornography.
- European countries such as France and Germany have been more concerned about online hate speech.
- In 1997, Germany enacted the Information and Communications Act, which was directed at censoring neo-Nazi propaganda.
- However, the German statute applies only to persons who reside in Germany.

91

Hate Speech (Continued)

- Hate speech on the Internet often targets members of certain racial and ethnic groups.
- For example, white supremacist organizations such as the Ku Klux Klan (KKK) can include on their Web pages offensive remarks about African Americans and Jews.
- Because of the Internet, international "hate groups," can spread their messages of hate in ways that were not previously possible.

92

Hate Speech (continued)

- Another controversial form of hate speech on the Internet is one that has involved radical elements of conservative organizations.
- Extreme right-wing militia groups, whose ideology has often been anti-federal-government, can broadcast information online about how to harm or even kill agents of the federal government.
- Consider the kind of anti-government rhetoric that emanated from the "militia movements" in the U.S. in the early 1990s, which some believe led to the Oklahoma City bombing.

93

Web Sites Designed to Combat Hate Speech

- "Hate-watch" Web sites, such as the Southern Poverty Law Center's (SPLC) "Intelligence Project" (http://www.splcenter.org), have been constructed.
- These sites have exposed the existence of various hate organizations to the public.
- SPLC's Intelligence Project counted 762 active hate groups in the U. S. in 2004.
- SPLC also includes a detailed map with physical locations of various hate groups, which it identifies under categories such as Ku Klux Klan, Neo-Nazi, Racist Skinhead, etc.

94

Web Sites Designed to Combat Hate Speech (Continued)

- Information available on these sites also provides an easy way for consumers of hate speech to locate and visit particular hate sites that serve their interests.
- Some hate sites use deceptive metatags to lure unsuspecting users to their sites.
- For example, a racist hate group could use keyword or descriptive metatags such as "Martin Luther King, Jr." to intentionally mislead persons interested in acquiring information about Dr. King by directing them instead to its racist Web site.

95

Combatting Online Hate Speech (Continued)

- Review Scenario 9-1 in the textbook, which describes how one "hacker group," called *Anonymous*, has taken on the KKK by exposing the real names of KKK members who use Twitter?
- Is *Anonymous*, a questionable group that engages in illegal hacking, justified in attack- ing those KKK members' Twitter accounts?
- Do "two wrongs make a right" in this case?

96

(Online) Speech That Can Cause Harm to Others

- Some forms of hate speech on the Internet are such that they *might* also result in physical harm being caused to individuals.
- Other forms of this kind of speech are, by the nature of their content, biased towards violence and physical harm to others.

97

(Online) Speech That Can Cause Harm to Others (Continued)

- Two examples of how certain forms of online speech can result in serious physical harm:

I. information posted on a Web site about how to construct bombs;

II. information on how to abduct children for the purpose of molesting them.

- Should this kind of information be censored on the Internet?

98

Network Neutrality

- What, exactly, is *network neutrality*, or "net neutrality," as it has commonly come to be called?
- Tim Wu, an Internet policy expert at Columbia University, describes it as a *principle* in which

  "a maximally useful public information network aspires to treat all content, sites, and platforms equally."
- Wu draws an analogy between a neutral Internet and other kinds of networks, which he claims are also implicitly built on a "neutrality theory."

99

Network Neutrality (Continued)

- Describing the *neutral* nature of the electric grid, Wu (http://timwu.org/network_neutrality.html) writes:

> The general purpose and neutral nature of the electric grid is one of the things that make it extremely useful. The electric grid does not care if you plug in a toaster, an iron, or a computer. Consequently it has survived and supported giant waves of innovation in the appliance market. The electric grid worked for the radios of the 1930s works for the flat screen TVs of the 2000s. For that reason the electric grid is a model of a neutral, innovation-driving network.

100

Network Neutrality (Continued)

- The principle of net neutrality is currently at the center of a contentious debate between two groups:
- *neutrality opponents*, which include major U.S. telecommunication companies as well as some conservative law makers;
- *neutrality proponents*, which include a wide coalition of organizations that are commercial and non-commercial, liberal and conservative, and public and private.
- Lessig and McChesney (2006) note that neutrality proponents also include many consumer groups and ordinary users, as well as the founders of the Internet.

101

Network Neutrality (Continued)

- Proponents believe that the Internet had been conceived of and implemented as a neutral network from the outset, even if no regulatory laws or formal policies were in place to enforce it.
- The tension between proponents and opponents escalated in 2005, when the FCC officially adopted four broad neutrality principles in an effort to both

a) "deregulate the Internet services provided by telephone companies,"

b) "give consumers the right to use the content, applications, services and devices of their choice when using the Internet."

102

Network Neutrality (Continued)

- In 2008, Comcast, was accused of slowing down access to (and effectively blocking users from) a popular peer-to-peer (P-2-P) file-sharing site.
- Also, in 2008, the FCC filed a formal complaint against Comcast for its actions.
- The FCC did not impose a fine on the service provider, but it required that Comcast cease blocking the P2P site in question.
- Comcast challenged the FCC's position in court, and a federal appeals court ruled in Comcast's favor.

103

Network Neutrality (Continued)

- The FCC then approved what some view as a "compromise" position that effectively created two classes of Internet access:
- one for "fixed-line providers,"
- one for the "Wireless Net."
- Some critics saw this compromise as a form of "net semi-neutrality."

104

Network Neutrality (Continued)

- On the one hand, that (FCC) policy officially banned fixed-line broadband providers' services from both "outright blocking" and "unreasonable discrimination" of Web sites or applications.
- On the other hand, the policy also provided more "wiggle room" to wireless providers such as Verizon and AT&T.

105

Some Arguments Advanced by Network Neutrality Proponents

- Proponents of net neutrality tend to argue that the America's largest telecommunications companies, including AT&T, Comcast, Time Warner, and Verizon, want to be "Internet gatekeepers" who can:
- guarantee speedy delivery of *their* data via "express lanes" for their own content and services, or for large corporations that can afford to pay steep fees;
- slow down services to some sites, or block content offered by *their* competitors;
- discriminate "in favor of their own search engines, Internet phone services and streaming video."

106

Some Arguments Advanced by Network Neutrality Opponents

- Opponents of net neutrality claim that the telecom- munications companies have no plans to block content or services, slow down or "degrade" network performance for some sites, or discriminate against any users.
- Instead, they argue that these companies simply want to stimulate competition on the Internet and that doing this will result in increased:
- Internet speed, reach, and availability for users (in the U.S.);
- economic growth, job creation, global competitiveness, and consumer welfare.

107

Future Implications for the Net Neutrality Debate

- Tim Berners-Lee, who designed the Web's HTTP Protocol and is a staunch proponent of net neutrality, remarked on what he believes would happen if neutrality is lost:

  "When I invented the Web, I didn't have to ask anyone's permission. Now, hundreds of millions of people are using it freely. I am worried that that is going to end in the USA."

108

Future Implications for the Net Neutrality Debate (Continued)

- Neutrality proponents believe that the consequences of an Internet without a neutrality principle would be devastating for at least three reasons:

1. access to information would be restricted, and innovation would be stifled;
2. competition would be limited because consumer choice and the free market would be sacrificed to the interests of a few corporations;
3. the Internet will look more like cable TV, where network owners will decide which channels, content, and applications are available (and consumers will have to choose from their menus).

109

Future Implications for the Net Neutrality Debate (Continued)

- Neutrality opponents, especially large telephone and cable companies in the U.S., see the matter very differently, claiming that:
- broadband providers claim that since 2008 they have invested more than $250 billion dollars to expand Internet access to broadband technology to homes and businesses in the U.S.
- the broadband industry is now responsible for supporting more than six million American jobs.

110

Future Implications for the Net Neutrality Debate (Continued)

- In early 2014, the FCC proposed a regulatory policy that some neutrality proponents believed would protect key aspects of net neutrality.
- However, this policy was also challenged in the courts and was rejected by a federal court on the grounds that the FCC was trying to regulate Internet providers as if they were the same as public utilities.
- Public utilities are typically more heavily regulated than "information services" providers.
- But Net-neutrality supporters were encouraged that the federal court, in its 2014 ruling, upheld and confirmed the FCC's authority to regulate broadband on the Internet.

111

Future Implications for the Net Neutrality Debate (Continued)

- In early 2015, the FCC deliberated over a new policy that would reclassify broadband as "telecommunications services," similar to traditional telephone service
- This move would also enable Internet broadband to be regulated more heavily.
- Additionally, it gave the FCC more authority in regulating business mergers and agreements between content com- panies, like Netflix, and (service) providers like Comcast.
- Under the FCC's enforcement, Comcast and other Internet providers were also banned from entering into so-called "paid prioritization" agreements with content providers.

112

Future Implications for the Net Neutrality Debate (Continued)

- In February 2015, the FCC officially adopted its new (i.e., latest) policy.
- According to Tim Fernholz (2015), this policy can be summarized as requiring ISPs to follow three principles:

1) no blocking of legal content;
2) no "throttling," or deliberately slowing down the delivery of data;
3) no paid prioritization, where ISPs could set up "fast lanes" for some content providers but not others.

113

FCC, Where art thou?

- In 2015, the FCC decided in favor of net neutrality by regulating Internet providers as Title II public utilities
- Additionally, it gave the FCC more authority in regulating business mergers and agreements between content companies, like Netflix, and (service) providers like Comcast.
- Under the FCC's enforcement, Comcast and other Internet providers were also banned from entering into so-called "paid prioritization" agreements with content providers

114

FCC, Where art thou?

The 2015 Policy can be summarized as requiring ISPs to follow three principles:

- no blocking of legal content
- no “throttling,” or deliberately slowing down the delivery of data
- no paid prioritization, where ISPs could set up “fast lanes” for some content providers but not others

115

FCC, Where art thou?

- FCC reversal of net neutrality regulations effective June 11, 2018 was done despite widespread public opposition, rampant fraud in the FCC’s public comment process, and no proof of public benefit
- Challenged in court by a broad consortium of Internet companies and organizations
- The FCC was sued by 23 state attorneys general
- A bill was in the House of Representatives to codify net neutrality as it existed prior to the recent reversal

116

Future Implications for the Net Neutrality Debate (Continued)

- Many believe that the net-neutrality dispute is far from settled and that it is still not yet clear which direction the U.S. government will ultimately take in the long term.
- Some fear that if the Internet eventually becomes a multi-tiered entity, where those who either control content or can afford to pay for premium access are privileged or favored at the expense of ordinary users, the future Internet may become a “discriminatory medium.”
- Concerns about discriminatory online access may also raise some new, or at least exacerbate some existing, equity-and-access related issues affecting the “digital-divide” (examined in detail in Chapter 10).

117

?

118